



भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

(सड़क परिवहन एवं राजमार्ग मंत्रालय, भारत सरकार)

National Highways Authority of India

(Ministry of Road Transport & Highways, Govt. of India)



परियोजना कार्यालय/Project Office

परियोजना कार्यान्वयन इकाई, प्लॉट नं० 02, प्रथम तल, ग्राम-कमहेनपुर (आर्गेनिक इण्डिया तुलसी फैक्ट्री के सामने)

पोस्ट- भवरनाथ, जनपद-आज़मगढ़ - 276001 (उ.प्र.)

PROJECT IMPLEMENTATION UNIT, Plot No:02, 01st Floor, Vill- Kamhenpur, (Opp. Organic India Tulsi Factory)

Post Bhawarnath, Distt. Azamgarh - 276001 (UP)

ई-मेल/ E-mail : piuzamgarh@gmail.com, piuzamgarh@nhai.org, वेबसाइट/ Website : www.nhai.gov.in

दूरभाष / Phone : 0546-2260117, फैक्स / Fax : 0546-2260117

11015/NHAI/PIU-Azamgarh/NH-31(Greenfield)/Marc/KP/2024-25 ५११३

Date: 05.08.2024

To,

Sh. Vikash Kumar Pathak,
Resident cum Highway Engineer
S/o Sh. Vindhyachal Pathak, Post-Washilpur,
Dist.: Arwal, Bihar- 804401.
Email: vikashpatnayak@gmail.com
Phone:9060162152.

Debarment Order

Sub: Consultancy Services for Authority's Engineer for Supervision of Four Lane Highway from Ghazipur Ballia UP/Bihar State Border (Greenfield) section of NH-31 (PACKAGE-1) [HRIDAIPUR (0.000) TO SHAHAPUR (KM.42.500) and (PACKAGE-IV) [Buxar spur of length 17.270 Km) on EPC mode 17.270 Km on EPC Mode in the State of Uttar Pradesh.

Ref: i. M/s Marc Technocrats Pvt. Ltd. letter no. 19 dated 14.11.2023

ii. This office letter no. 7545 dated 01.09.2023

iii. This office letter no. 7358 dated 10.07.2023

iv. Consultancy contract Agreement dated 28.06.2023

v. LOA letter no. NHAI/HQ/UP(E)/PIU-AZM/G-B/Pkg-I&IV/2023/E-164829/149 dated 13.06.2023

vi. E-Office Computer no. 230214

Sir,

Please refer to the LOA issued to M/s Marc Technocrats Private Limited in JV with M/s Bloom Companies in Association with M/s Shreya Infra Consultant Pvt. Ltd. on 13.06.2023. Consultancy Contract Agreement for the subject project was executed on 28.06.2023.

2. In this regard, M/s Marc Technocrats Private Limited in JV with M/s Bloom Companies in Association with M/s Shreya Infra Consultant Pvt. Ltd. has submitted your CV to NHAI HQ and requested for according approval for the position of Resident cum Highway Engineer.

3. Whereas, you have submitted an undertaking that "If I leave this assignment in the middle of the work, NHAI would be at liberty to debar me from taking my assignment in any of the NHAI work for an appropriate period of time to be decided by NHAI. I have no objection if my service is extended by NHAI for this work in future. I further undertake that if due to my inability to work on this project due to unavoidable circumstances, due to which consultant's firm is forced to seek replacement. In such unavoidable circumstances, I shall not undertake my employment in NHAI projects during the period of assignment of this project and NHAI shall consider my CV invalid till such time."

4. Further, NHAI HQ vide LOA letter no. 149 dated 13.06.2023 had accorded the approval of CV of Sh. Vikash Kumar Pathak for the position of Resident cum Highway Engineer. In this regard, this office vide letter no.7358 dated 10.07.2023 requested AE to commence the services including mobilization of staffs and resources immediately. Further, Authority Engineer commenced his services w.e.f.17.07.2023 vide their letter no. 02 dated 17.07.2023 and accordingly mobilized some key and sub-professional staff for subject project.

5. Further, vide letter no. 19 dated 14.11.2023, Authority Engineer has apprised that, "After a series of communications, you have joined the project on 18.08.2023 and spent only 03 days at the site from 18th August, 2023 to 21st August, 2023. On the next day i.e. on 22nd August, 2023, you have fled from the site without any information or prior approval of the Competent Authority.

6. Further, in view of above situation AE has recommended to initiate the necessary steps to blacklist you for at least 30 months from participating in any projects under the purview of MORTH, NHAI, BRO, PWD, NHIDCL, and other executing agencies engaged in National Highways projects across India as per Clause 4.5.6 of GCC, " If any member of the approved team of a consultant engaged by National Highways Authority of India leaves that consultant before completion of the job, he shall be debarred for a period of 6 months to 30 months from being engaged as a team member of any other consultant working (or to be appointed) for any other National Highways Authority of India /MORTH projects."

7. Further, as per the recommendation of Authority Engineer, the proposal was submitted to Competent Authority at NHAI HQ for further necessary action and therefore, Competent Authority has approved the proposal and debarred you from participating in any projects under the purview of MoRTH, NHAI, BRO, PWD, NHIDCL, and other executing agencies engaged in National Highways projects across India for a period of 24 months (i.e. 2 year) from the date of issue of this letter.

8. This is without prejudice to any other rights and/or remedies available to NHAI under the Contract and/or applicable laws.

This issues with the approval of Competent Authority of NHAI.

Encl: Current CV of Sh. Vikas Kumar Pathak uploaded on Infracon.


05/08/24
(SP Pathak)
GM(Tech) cum Project Director
NHAI, PIU-Azamgarh

Copy to:1: General Manager(T)-UP(East), NHAI HQ.

2: Regional Officer, RO-UP(E), NHAI, Varanasi for kind information.

3: Web Admin- with a request to circulate to all officers of NHAI.

4: NHIDCL- with a request to debar his CV on Infracon Portal.

5: M/s Marc Technocrats Private Limited, for further necessary action.

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Marc Technocrats Private Limited

In JV with Bloom Companies LLC
In association with Shreya Infra Consultants Pvt. Ltd.

CIN: U74210DL2007PTC166575

Corp. Office: Marc House, Plot No. 2264, Sector -2, Behind: Sector-2 Police Station, Bahadurgarh, Haryana -124507

E-mail: mct_rtk@rediffmail.com, marc.aeprojects@gmail.com, Phone: 01276-297115, 796960

Project Office: Marc Technocrats Pvt. Ltd. In JV with M/s Bloom Companies LLC in association with M/s Shreya Infra Consultants Pvt. Ltd. C/o Mr. Sanjay Singh S/o Janardan Singh, Vikas Bhawan Road, Prakash Nagar Peer Nagar, Near Family Mart, Gazipur-233001, Uttar Pradesh

MARC/G-B/NH-31 (Greenfield)/ PKG-I & IV/2023-24/19

Dated: 14.11.2023

To,

The General Manager & Project Director

National Highway Authority of India,

Project Implementation Unit,

20/104, 1st Floor, Harbanspur,

Azamgarh-276001 (U.P)

Phone: 0546-2260117

Email: piuzamgarh@gmail.com, piuzamgarh@nhai.org

Subject: - Consultancy Services for Authority Engineer Services for Four Lane Highway from Ghazipur-Ballia - UP/Bihar State Border (Greenfield) section of NH-31: (I) HRIDAIPUR (KM 0.000) TO SHAHAPUR (KM 42.500) (PACKAGE-I) and (II) Buxur spur of length 17.270 Km (PACKAGE-IV) in the state of Uttar Pradesh on EPC mode- Regarding submission of replacement CV of Resident Cum Highway Engineer-1 for Approval as per Clause 4.5.5 of General Conditions of Contract (GCC) under CA.

Ref.:

- (i). PD NHAI PIU Azamgarh LOA letter no. NHAI/HQ/UP(E)/PIU-AZM/G-B/Pkg I&IV/2023/ E-164829/149 dated 13.06.2023
- (ii). Consultancy Agreement dated 28.06.2023
- (iii). PD NHAI PIU Azamgarh letter no. 11015/NHAI/PIU-AZM/NH-31 (Greenfield) /PKG-I & IV /2023-24/7358 dated 10.07.2023
- (iv). This office Letter No. MARC/NHAI/UP/NH-31/PKG-I&IV/2023/02 Dated 17.07.2023.
- (v). PD NHAI PIU Azamgarh letter No. 11015/NHAI/PIU/Azamgarh/NH-31/2023-24/ 7578 dated 08.09.2023 (Timely Deployment).

Dear Sir,

Consequent upon the interview of Mr. Vikash Kumar Pathak as a Resident Engineer-1 for the said project in NHAI HQ on 25.05.2023, his CV was approved by NHAI vide letter No.149 dated 13.06.2023. Accordingly, your office vide letter dated 10.07.2023 informed us to commence the consultancy services.

2. In line with the commencement of services as per section-2 of contract agreement, this office immediately issued the offer letter vide letter No MARC/HO/NHAI/UP/NH-31/PKG-I&IV/2023/02 dated 10.07.2023 to Mr. Vikash Kumar Pathak and asked him to join the project at the earliest. He accepted the offer letter on 17.07.2023 and confirmed to report to the project site latest by 3rd week of August, 2023 positively after serving the notice period at his current employer.

3. After a series of communications, Mr. Vikash Kumar Pathak joined the project, on 18.08.2023 (Joining report attached) and spent 3 days at the site from 18th August, 2023 to 21st August, 2023. During his short stay, Mr Pathak committed serious misconduct, exhibiting unprofessional behavior indulging in excessive drinking and finally resulting in hospitalization. On the next day i.e on 22nd August, 2023, Mr. Pathak fled from the site without any information or prior approval of the Competent Authority.

4. Business Development team as well as Project Coordinator from HQ had continuously requested Mr. Pathak to ensure his presence at site as per the requirement of the project but he kept assuring to rejoin the project. After repetitive communications and various requests, he again joined the project on 13.09.2023 and remained available on the project for 5 days only from 13th September, 2023 to 18th September, 2023. Thereafter Mr. Pathak submitted leave application on 18th September, 2023 to go on leave for 7 days i.e from 19th September, 2023 to 25th September, 2023. After availing leave for 7 days, Mr. Pathak failed to rejoin the project on 26th September, 2023 and started visiting...

irrelevant excuses. Despite continuous pursuance from our H'qtr, Mr. Pathak did not join the project site till 3rd November 2023. Meanwhile it came to knowledge of our H'qtr that Mr. Pathak is working simultaneously with M/s Theme Engineering Services Pvt. Ltd. This was corroborated because Mr Pathak applied for extension of leave from project mail id of M/s Theme Engineering Services Pvt. Ltd (Copy Enclosed) and afterwards the same email was sent through his personal mail id also.

5. Mr. Vikash Kumar Pathak came to know about the internal enquiry against him and therefore, Mr. Pathak joined the project on 16th November, 2023. Mr. Pathak stayed for only 5 days again as per his practice i.e he stayed for 16th October, 2023, to 20th October, 2023 and again fled from the project without any prior permission of the Competent Authority.

6. Our H'qtr further investigated and found that Mr. Vikash Kumar Pathak had shown M/s Frishman Prabhu as his last employer (Joining Report Enclosed) in the joining report submitted in our office whereas he was working in M/s Theme Engineering Services Pvt. Ltd w.e.f 07.02.2023. (Copy of Invoices claimed by M/s Theme Engineering Services Pvt. Ltd. showing his deployment in Rajasthan are attached for reference in the project of "Procurement of Authority Engineer for Development & Maintenance of Kherli-Nadbai-Kumher Section of SH-44 (Length-38.600 km) in the state of Rajasthan on EPC mode in the State of Rajasthan"). This clearly indicates that Mr. Vikash Kumar Pathak is providing his services to both companies i.e. M/s Theme Engineering Services Pvt. Ltd and M/s Marc Technocrats Pvt. Ltd which is a fit case of misrepresentation and misconduct.

7. Fearing the outcome of his misconduct, Mr. Pathak hurriedly resigned from the said project (Gazipur-Ballia) on 02nd November, 2023 (email copy enclosed).

8. In view of the facts on record and conclusion of investigation by our H'qtr, it is a fit case of misconduct and misrepresentation and clearly attracts provision of clause 4.5.5 and 4.5.6 of Contract Agreement which is reproduced as under:

4.5.5 If the Employer finds that any of the Personnel has committed serious misconduct or has been charged with having committed a criminal action or (ii) has reasonable ground to be dissatisfied with the performance of any of the Personnel, then the consultant shall, at the Employer's written request specifying the grounds therefore, forthwith provide a replacement with qualifications and experience acceptable to him. For such replacement there will be no reduction in remuneration.

4.5.6 If any member of the approved team of a consultant engaged by National Highways Authority of India leaves that consultant before completion of the job, he shall be barred for a period of 6 months to 30 months from being engaged as a team member of any other consultant working (or to be appointed) for any other National Highways Authority of India / MoRTH projects.

10. In view of the above, it is recommended to blacklist and debar Mr. Vikash Kumar Pathak, Resident Engineer-01 for not less than 30 months from MoRTH/NHAI/BRO/PWD/NHIDCL projects as per clause 4.5.6 of the Consultancy Agreement.

S. No.	Name/ Designation of Key Professionals	Date of Birth	PAN No.	Infracon Email Id.
1.	Mr. Vikas Kumar Pathak/ Resident Engineer-1	01/07/1982	BMOPP6405M	vikashpatnayak@gmail.com 9060162152

11. We further request NHAI not to disburse his salary for the services rendered in the said project (Gazipur-Ballia) as per the attendance marked on NHAI ONE application.

12. Looking to the progress of the project and purely in the public interest, we request NHAI (Authority) to accord approval for suitable replacement of Resident Engineer-01 as per clause 4.5.5 (without any reduction in remuneration). We, hereby, propose Mr. Dharmendra Singh as Resident Engineer-01 who possess required qualifications and have extensive experience working with National Highway Authority of India Projects and meets the eligible criteria set forth in the Contract Agreement.

S.N	Existing Key Professional/ Designation	Proposed Key Professional/Designation for replacement as per clause 4.5.5
1	Mr. Vikas Kumar Pathak/ Resident cum Highway Engineer-1	Mr. Dharmendra Singh/ Resident cum Highway Engineer-1

13. Submitted for according necessary approval by NHAI:

- (i) Blacklist and debarment of Mr. Vikash Kumar Pathak, Resident Engineer-01 for not less than 30 months for MoRTH/NHAI/BRO/PWD/NHIDCL projects.
- (ii) Replacement of Resident cum Highway Engineer-1 by Mr. Dharmendra Singh.

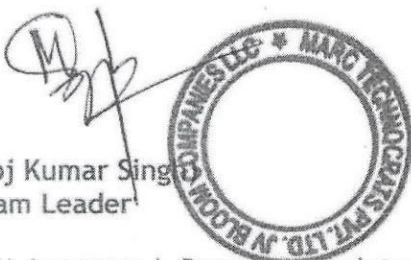
14. This is issued with the concurrence and approval of the Competent Authority in HQ and submitted herewith for your information and urgent necessary action in the said matter please.

We are committed for the best services as required for the project and appreciate your kind Cooperation.

Sincerely,

For Marc Technocrats Pvt. Ltd- Bloom Companies LLC (JV)

(Manoj Kumar Singh)
Team Leader



Encl: 1) Annexure-I- Documents related to Mr. Vikash Kumar Pathak

2) Annexure-II- CV of Mr. Dharmendra Singh/ Resident cum Highway Engineer-1 along with his all relevant documents

Copy to:

1. Regional Officer, RO-UP(East), NHAI, Varanasi (Email: rovaransi@nhai.org)
2. Marc Technocrats Pvt Ltd HQ (marc.aeprojects@gmail.com)